**IN THE NATIONAL COMPANY LAW TRIBUNAL**
**NEW DELHI BENCH**
**COURT-IV**

**C.A. (CAA) NO. 50/ND/2025**

**Section 230-232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016**

**IN THE MATTER OF:**

**BLACKBIRD INVESTMENTS INDIA PRIVATE LIMITED**
**...TRANSFEROR COMPANY NO. 1/APPLICANT COMPANY NO. 1**
**AND**
**JRG HEALTHCARE INDIA PRIVATE LIMITED**
**...TRANSFEROR COMPANY NO. 2/NON-APPLICANT COMPANY**
**AND**
**JRG ENGINEERING POLYMERS PRIVATE LIMITED**
**...TRANSFEREE COMPANY/APPLICANT COMPANY NO. 2**

**Order Delivered on: 09.03.2026**

**CORAM:**

**SHRI MANNI SANKARIAH SHANMUGA SUNDARAM**
**HON'BLE MEMBER (JUDICIAL)**

**SHRI ATUL CHATURVEDI**
**HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**

For the Applicant: Mr. Afnaan Siddiqui, Ms. Suman Kumar Jha,
Mr. Vaibhav Khurana, Mr Armaan Siddiqui, Advocates

**ORDER**

**PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)**

1. The captioned application is a first motion application jointly filed by M/s Blackbird Investments India Private Limited (hereinafter referred to as Transferor Company No. 1/Applicant Company No. 1) and M/s JRG Healthcare India Private Limited (hereinafter referred to as Transferor Company No. 2/Non-Applicant Company) and M/s JRG Engineering Polymers Private Limited (hereinafter referred to as Transferee Company/Applicant Company No. 2) under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "Scheme").
2. The registered office of Transferor Company No. 1 and Transferee Company is in the NCT of Delhi and hence within the territorial jurisdiction of this Tribunal. The registered office of Transferor Company No. 2/Non-Applicant company is at Plot No. 40, Ground Floor, Sector-2 Phase-I, Bawal, District Rewari, Bawal, Haryana-123501, and not within the jurisdiction of this Tribunal.
3. The Applicant Companies in their Application have prayed for dispensation of meeting of the Secured Creditors and Unsecured Creditors in respect of the Transferee Company and dispensation of

meeting of equity shareholders in respect of both Transferor Company No. 1 and Transferee Company.

4. Affidavit in support of the above application sworn by Mr. Rakshat Goyal on behalf of both Applicant Company No. 1 and 2, Authorized Signatory/Director, on behalf of Applicant Companies, is filed.

5. As has been stated in the application, the Transferor Company No. 1/Applicant Company No. 1 i.e., M/s Blackbird Investments India Private Limited was incorporated on 28th October 2021, under the provisions of the Companies Act, 2013 bearing CIN: U65999DL2021PTC389146 having its registered office at DSM 448-449, DLF Towers, Shivaji Marg, West Delhi, Delhi, India-110015. The Authorized Share Capital of the Transferor Company No. 1/Applicant Company No. 1 is Rs. 2,10,00,000/- divided into 21,00,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Share Capital is Rs. 2,10,00,000/- divided into 21,00,000 Equity shares of Rs. 10/- each. The Transferor Company No. 1 is engaged in the business of holding, investment and finance.

6. The Transferor Company No. 2/Non-Applicant Company i.e., M/s JRG Healthcare India Private Limited was incorporated on 27th November 2019, under the provisions of the Companies Act, 2013 bearing CIN: U51100HR2019PTC083867 having its registered office at Plot No. 40, Ground Floor, Sector-2 Phase-I, Rewari, Bawal, Haryana-123501. The

Authorized Share Capital of the Transferor Company No. 2/Non-Applicant Company is Rs. 50,00,000/- divided into 5,00,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Capital of Transferor Company No. 2 is Rs. 50,00,000/- divided into 5,00,000 Equity shares of Rs. 10/- each. The main object of the Transferor Company No. 2 is to design, manufacture, import, export, trade, and deal in a wide range of medical, surgical, pharmaceutical, diagnostic, and healthcare products as well as to provide related consultancy services, undertake activities related to biomedical and diagnostic technology development, laboratory setup, and software services for it and trading and manufacturing of plastic and PVC based materials.

7. The Transferee Company/Applicant Company No. 2 i.e., M/s JRG Engineering Polymers Private Limited was incorporated on 7th November 2005, under the provisions of the Companies Act, 1956 bearing CIN: U74900DL2005PTC142299 having its registered office at DSM 448-449, DLF Towers, Shivaji Marg, West Delhi, Delhi, India-110015. The Authorized Share Capital of the Transferee Company/Applicant Company No. 2 is Rs. 1,00,00,000/- divided into 10,00,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Capital of Transferee Company is Rs. 1,00,00,000/- divided into 10,00,000 Equity shares of Rs. 10/- each. The Transferee Company

is engaged in the business of trading of PVC, Polymers, PVC Chemicals, PVC Raw Material, Rubber Chemicals, Plastic Lajures and allied goods.

8. The Applicant Companies have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their Audited Financial Statement for the year ended 31.03.2024 along with Copy of Unaudited Management Certified Balance Sheet and Statement of Profit and Loss for the period ending on September 30, 2024.

9. The Board of Directors of the Applicant Companies have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of Resolution Passed at Board of Directors Meeting of the respective companies dated 20.01.2025 have been placed on record.

10. The appointed date as specified in the Scheme is 1st April, 2024, or such other date as the Hon'ble National Company Law Tribunal may direct.

11. **RATIONALE OF THE SCHEME**

    i. The shares of both the Transferor Companies and the Transferee Company are held by common set of shareholders i.e. Mr. Rakshat Goyal and Ms. Jahanvi Goyal. This Scheme envisages consolidation of businesses and simplification of shareholding structure thereby strengthening position of the Transferee Company.

ii. It is intended that Transferee Company shall have sharper focus on underlying businesses with an aim of achieving operational efficiencies, stronger financials and growth prospects for the people and organization connected therewith. Accordingly, consolidation of businesses of the said companies would be in their best interests as of the Companies as well as their respective shareholders and other stakeholders. The proposed scheme is in line with the current global industry practice to achieve size, scalability, integration, greater financial strength and flexibility thereby maximizing shareholder value and to achieve higher long-term financial returns.

iii. The other benefits likely to arise through the proposed arrangement are as follows:

a) Optimum and efficient utilization of capital, resources, assets and facilities;

b) Enhancement of competitive strengths including financial resources;

c) Consolidation of businesses and enhancement of economic value addition and shareholder value;

d) Obtaining synergy benefits;

e) Better management and focus on growing the businesses.

f) The amalgamation would result in reduction of overheads, administrative, managerial and other expenditure and bring about operational rationalization, efficiency and optimum utilization of various resources.

g) A larger growing company will mean enhanced financial and growth prospects for the people and organization connected therewith, and will be in public interest. The amalgamation will be conducive for better and more efficient and economical control over the business and financial conduct of the Companies.

iv. There is no adverse effect of Scheme on the directors, key management personnel, shareholders, creditors and employees of transferor company and transferee company. The Scheme would be in the best interest of all stakeholders.

12. The Scheme of Amalgamation is proposed by the Applicant Companies for the aforesaid reasons. The Board of Directors and Management of the Applicant Companies is of the opinion that the proposed Scheme is in the best interest of these Companies, their Shareholders and other stakeholders.

13. The applicant companies have annexed the certificate issued by the respective statutory auditors confirming that the accounting treatment

in the Scheme is in compliance with the accounting standards prescribed by the Central Government under Section 133 of the Companies Act, 2013 by the respective companies.

14. With respect to Transferor Company No. 1, the captioned application discloses that:

a) The Company has 2 (Two) Equity Shareholders as on 31.03.2024. The list of equity shareholders is reflected in the financial report which is annexed with the application and a list is also certified by the director of the company. The respective consent by way of affidavit by them is annexed with the application.

b) The Company has nil Secured Creditors as on 30.11.2024. Certificate from Chartered Accountants certifying the same is annexed with the application.

c) The Company has nil Unsecured Creditors as on 30.11.2024. Certificate from Chartered Accountants certifying the same is annexed with the application.

d) In relation to the Equity Shareholders, it seeks dispensing with convening/holding the meeting as consent from all the shareholders are placed on record. Since there are no Secured or Unsecured Creditors, therefore the necessity of convening and holding a meeting does not arise.

15. With respect to Transferor Company No. 2, the captioned application discloses that:

a) The Company has 2 (Two) Equity Shareholders as on 31.03.2024. The list of equity shareholders is reflected in the financial report which is annexed with the application and a list is also certified by the director of the company.

b) The Company has nil Secured Creditor as on 30.11.2024. Certificate from Chartered Accountants certifying the same is annexed with the application.

c) The Company has 6 (Six) Unsecured Creditors as on 30.11.2024. Certificate from Chartered Accountants certifying the same is annexed.

d) The Company submits that the registered office of the Transferor Company No. 2/Non-Applicant Company is situated within the State of Haryana i.e. within the Jurisdiction of Hon'ble National Company Law Tribunal, Bench at Chandigarh and hence, the Non-Applicant Company shall file the Application seeking directions with respect to dispensation/convening of meetings of its shareholders, secured and unsecured creditors with Hon'ble National Company Law Tribunal, Bench at Chandigarh.

16. Regarding the Transferee Company, the applicants have averred that:

a) The Company has 2 (Two) Shareholders as on 31.03.2024. The list of equity shareholders is reflected in the financial report which is annexed with the application and a list is also certified by the director of the company. The respective consent by way of affidavit by them is annexed with the application.

b) The Company has 4 (Four) Secured Creditors as on 30.11.2024. Certificate by Chartered Accountants certifying the same is annexed with the application. The respective consent by way of No-Objection Certificates by them is annexed with the application.

c) The Company has 63 (Sixty-Three) Unsecured Creditors as on 30.11.2024. Certificate from Chartered Accountants certifying the same is annexed. Consent is obtained from 40 (Forty) Unsecured Creditors representing 90.78% of total value. The respective consent by way of affidavit by them is annexed with the application.

d) In relation to the Equity Shareholders, Secured and Unsecured Creditors it seeks dispensing with convening/holding the meetings as consent of all the parties are placed on record.

17. The applicant companies have filed an affidavit affirming that no proceeding for inspection, inquiry or investigation under the provisions of the Companies Act, 2013, or under any other law is pending against

any of the Applicant Companies. Further, no material legal proceeding is pending against the Applicant Companies and there is no other Sectoral Regulator or Regulatory Authority which may have significant bearing on the operations of the Applicant Companies. None of the Applicant Companies is regulated or governed by the Securities and Exchange Board of India (SEBI), the Competition Commission of India (CCI), the Reserve Bank of India (RBI), or any other Sectoral Regulator. Hence, notice of the Scheme of Amalgamation is not required to be served on the SEBI, the CCI, the RBI, or any other Sectoral Regulator.

18. In the wake of the averments made in the application and the documents filed therewith, the following directions are issued qua convening/holding or dispensing with the meetings of the Equity Shareholders, Secured and Unsecured Creditors.

**A. In relation to the Transferor Company No. 1/Applicant Company No. 1:**

a) <u>With respect to Equity Shareholders:</u> In view of consent affidavits, from all the Equity Shareholders, convening/holding the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: Since there are no Unsecured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

**B. In relation to the Transferee Company/Applicant Company No. 2:**

a) With respect to Equity Shareholders: In view of consent affidavits, from both the Equity Shareholders, convening/holding of the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: In view of consent affidavits, from all the Secured Creditors, convening/holding of the meeting of shareholders is dispensed with.

c) With respect to Unsecured Creditors: In view of consent affidavits, from the Unsecured Creditors, representing 90.78% in value, which is above the 90% requirement

under Section 230(9) of the Companies Act, 2013, convening/holding of the meeting of shareholders is dispensed with.

19. The Application i.e., **C.A. (CAA) No. 50 of 2025 stands allowed** in respect of the Applicant Companies on the aforesaid terms and accordingly disposed of.

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| **Sd/-** | **Sd/-** |
| **(ATUL CHATURVEDI)** | **(MANNI SANKARIAH SHANMUGA SUNDARAM)** |
| **MEMBER (TECHNICAL)** | **MEMBER (JUDICIAL)** |